Building Advisory B23-003
February 05, 2024

Subject: Existing Secondary Suite Frequently Asked Questions (FAQs)

This FAQs document is to be used with The City of Calgary Advisory Secondary Suites - Existing Prior to March 12, 2018. Construction of a new secondary suite is to follow Part 9 of the current version of the National Building Code - Alberta Edition (NBC - [AE]).

What is the Secondary Suites Amnesty Program?

The Secondary Suite Amnesty Program creates a timeframe for suite owners to self-identify, apply for the appropriate permits and legalize their existing suites at a reduced cost and in scope of the minimum lifesaving requirements of the NBC - (AE). The program started in June of 2018 and has been extended to December 31, 2026.

What is an existing secondary suite?

An existing secondary suite is a separate dwelling unit within a main residence that was constructed prior to March 12, 2018. Suite owners can legalize an existing suite at a reduced cost and in scope with the minimum safety requirements of the NBC - (AE).

What is a new secondary suite?

A new secondary suite is a separate dwelling unit within a main residence that was constructed after March 12, 2018 or is yet to be constructed. The requirements for legalizing a new secondary suite can be viewed on Adding a secondary suite (calgary.ca).

There are two compliance paths for secondary suites:

1. Eligible secondary suites existing prior to March 12, 2018 can be upgraded in accordance with The City of Calgary Advisory Secondary Suites - Existing Prior to March 12, 2018, more information is available at Legalize an existing secondary suite (calgary.ca).

2. All other secondary suites are required to follow Part 9 of the current NBC - (AE). More information is available at Adding a secondary suite (calgary.ca).

How is an existing secondary suite evaluated?

A suite will only be accepted as existing if the following conditions are met:

- All required elements must have been in place prior to March 12, 2018.
- A self-contained dwelling unit that includes a:
    - Sleeping area or bedroom
    - Bathroom
    - Kitchen with a cooking facility
    - Living area
    - Private entrance to the suite, that is separate from the main entry of the building. **Note:** A suite can have a shared stairwell space with the main entrance or lobby if the space opens directly to the outdoors.

- Any fundamental changes made to the suite, including upgrades, would be required to follow the NBC - (AE). Any construction necessary for meeting safety standards should be minor and the suite should remain essentially the same as it was.
- A Building Safety Codes Officer (SCO) will assess the suite based on the information submitted and the observations made during permit review or on-site during permit inspections. If any of the suite components are missing or alterations have occurred, the suite may not be deemed existing. **Based on the assessment, additional proof may be required.**
- The applicant is required to provide a signed Owner Declaration.

What information is required for an existing suite application?

The Existing Secondary Suite Permit Checklist provides the application requirements and can assist with determining if your suite qualifies as existing.

- Application requirements:
  - A completed Owner Declaration
  - A completed Existing Secondary Suite Information Sheet
  - Color photos of the suite (details on the permit checklist)
- Ensure there are no caveats or restrictions registered on the property title that could limit your ability to have a secondary suite in your community.

What fees are associated with legalizing an existing secondary suite?

Those applying to legalize an existing suite during the amnesty period can take advantage of waived fees for their Development Permit ($497) and Secondary Suite Registry ($244) until Dec. 31, 2026.

Building permit and trade permit fees include:

Building Safety Approval (Building Permit)	$205.92
Electrical Permit (if applicable)	$116.50
Plumbing Permit (if applicable)	$116.50
Mechanical Permit (if applicable)	$116.50

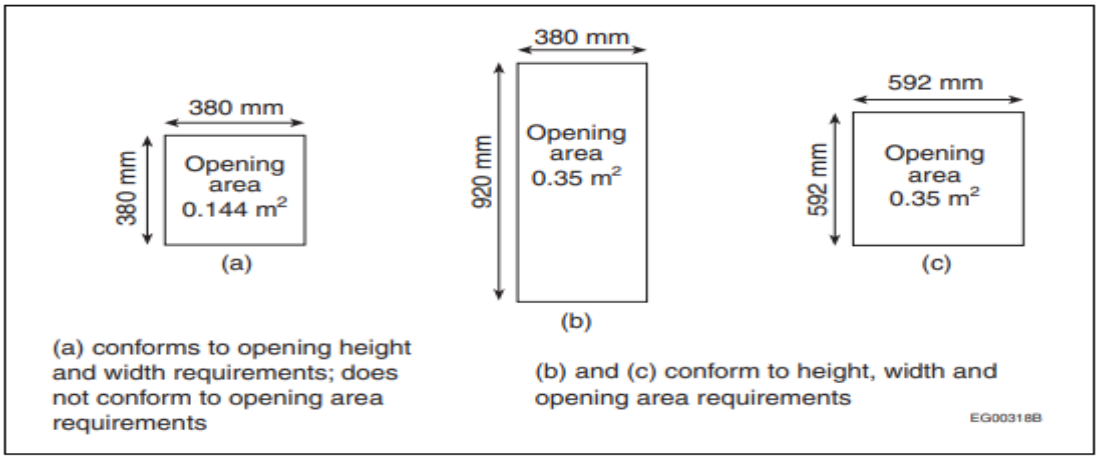
Please note: Fees shown here are based on the 2024 fee schedule and are the minimum fees for legalizing an existing suite.

What are some of the common improvements required during the legalization of secondary suites?

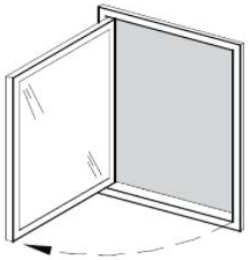
Bedroom windows requirements:

- The window must have an unobstructed opening of 0.35 m2 in area and a minimum height and width of 380 mm. See window detail 1.0 below.
- Each bedroom must have at least one window that can be fully opened and used to escape during an emergency. See detail 2.0 below for acceptable window style examples.
- When a window well is required, a clearance of 550 mm must be provided in front of the window. If a casement-type window is used, it must swing open a full 90 degrees. See window well detail 3.0 below.
- Security bars on bedroom windows must be removable from the inside without the use of tools, keys, or special knowledge.

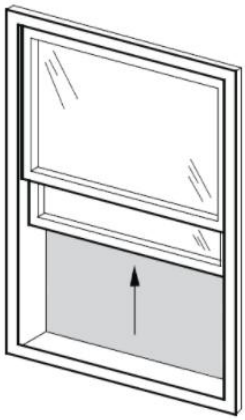
Detail 1.0

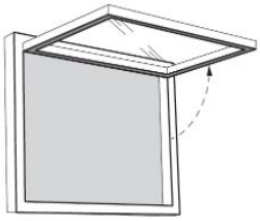


Detail 2.0

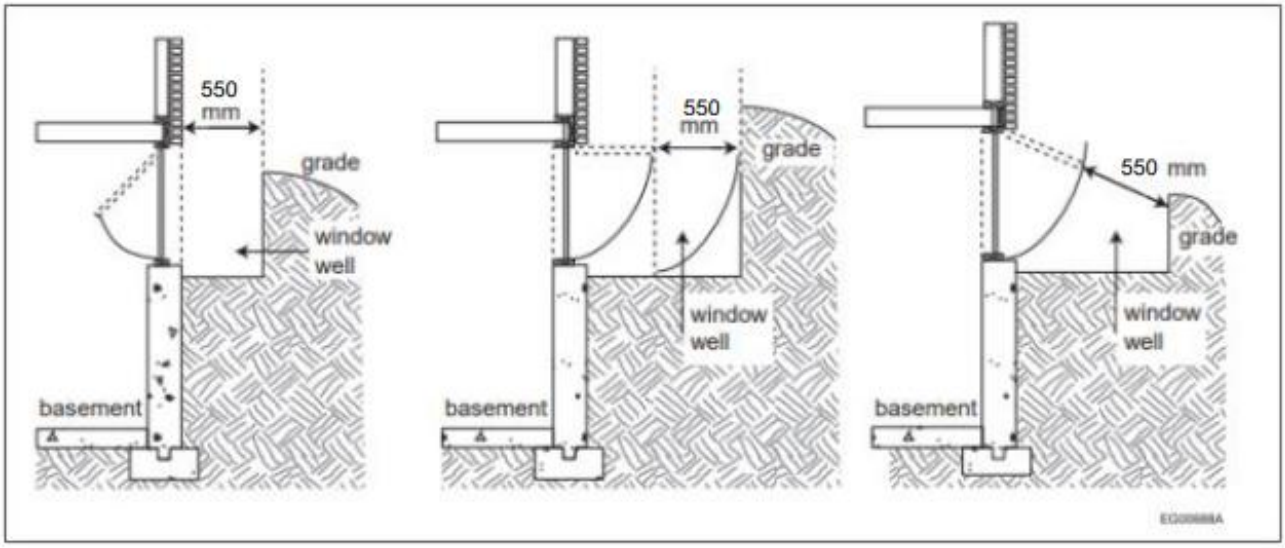

Casement window


Horizontal sliding window


Vertical sliding window


Inward swinging awning window

Detail 3.0



What are the requirements for openings adjacent to an exterior exit stair or ramp?

Safe evacuation is critical. Windows and doors in exterior walls are required to be protected from fire and smoke to allow evacuation and reduce the risk of fire spread. Windows and other openings in exterior walls must be protected by spacing with sufficient clearances. The advisory: B23-012 Protection of Openings Near Unenclosed Exterior Stairs and Ramps provides additional guidance.

Exterior renovations are sometimes required to build a projection/roof above an exit for an existing secondary suite to protect the exit from fire and smoke as noted above. Wall and roof flashing details must be submitted with your building permit application if this construction is required for you secondary suite.

There are additional resources that can assist owners when completing their application, including:

The Canadian Wood-Frame House Construction publication from the Canadian Mortgage and Housing Corporation. (See chapter 14 – Flashing)

If you still require further information, The Siding Contractors Association of Alberta, which is a non-profit construction trade association representing siding contractors, suppliers and manufacturers offers for purchase an illustrated guide with over 200 details and illustrations for Building Envelope details.

How does the drywall/gypsum on my walls and ceilings need to be finished?

A wall or ceiling between suites is to be constructed as a continuous barrier against the passage of smoke:
A smoke-tight barrier is obtained with one layer of 1/2 inch drywall on each side of the interior wall and one layer of 1/2 inch drywall on the ceiling. The seams shall be taped with drywall compound or an approved sealant. If one layer of 1/2 inch drywall cannot be installed on the ceiling in the mechanical room, the inspector may permit an equivalent method to meet the intent of the continuous smoke barrier. All penetrations must be tightly fitting or sealed with drywall compound, or an approved sealant.

Note: Doors located in a furnace room, doors between dwellings and other shared spaces are required to be smoke tight which means a solid door with no openings or windows. The solid door is also required to have a self-closing device.

Do I need to drywall the underside of my landing and stairs between suites?
If the stairs are in a common area, then yes, they must be drywalled, taped and finished as a smoke-tight barrier.

Where are smoke and carbon monoxide alarms required?
All smoke alarms and carbon monoxide alarms must be hard wired and interconnected, so that the activation of one alarm will cause all other alarms to sound in both the principal dwelling unit and the existing secondary suite.
In the secondary suite, devices are required in:

- Each bedroom
- Each common area
- Any hallway that serves bedrooms
- Every common area that is contained within a smoke-tight barrier (such as furnace rooms and common stairwells).

My house is older, and the stairs have never had guardrails or handrails. Do I need to have them installed?

Yes. Access to the secondary suite is required to be upgraded to reasonably meet current code requirements. Guards are required on stairs where there is a difference in elevation of more than 600 mm (24”) and a handrail is required on all interior stairs with more than two risers, and exterior stair with more than three risers.

The items above are minimum safety items. Other safety items may be identified by the Safety Codes Officer and required as minimal life safety items.

What are the benefits of legalizing my secondary suite?

For a homeowner, there are many benefits to legalizing and registering your suite and the City has made applying for a secondary suite simpler than ever.

- The City is waiving development permits and suite registration fees for owners who are legalizing existing suites until December 31, 2026.
- As legal suites are not subject to enforcement action, they are a more reliable and stable income and are recognized by lenders which can assist in qualifying new homeowners for mortgages.
- It can increase the value of your property and be more attractive to potential buyers when listed for sale.
- Your legal suite will also be more appealing to potential renters looking for a safe place to live.
- Owning a legalized secondary suite allows you to maximize underutilized space and has many benefits including generating passive income, building valuable equity, improving resale value and providing housing options for multi-generational families.
- Secondary Suites can help owners offset the costs associated with owning a home and the revenue generated from renting your suite can help maintain the upkeep of your home.

For renters/tenants, renting a legal registered secondary suite offers piece of mind knowing the suite is safe.

I’ve purchased a home with a suite, how can I verify if it’s legal?

If you’ve recently purchased a home that has a secondary suite, you can verify that the unit is registered and safe to rent by entering the property address into the Secondary Suites Registry, an online, searchable map that shows every legal and safe suite in Calgary.

Questions? Contact us at Calgary.ca/livechat

Chief Building Official
The City of Calgary

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